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CUET UG

History

The Making of the Constitution

Theme 12 · Framing the Constitution: The Beginning of a New Era · CUET UG 2027 Complete Mastery

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Syllabus Alignment & Chapter Architecture

Sub-Topic Domain	Official NTA CUET UG Unit XII Syllabus Scope	High-Frequency Cognitive Skills Tested
Genesis & Composition	Cabinet Mission Plan (1946); indirect elections; 300 members (post-Partition); Congress dominance (82%); Congress Triumvirate (Nehru, Patel, Prasad); Drafting Committee (Ambedkar, Munshi, Ayyar); B.N. Rau (Advisor); S.N. Mukherjee (Chief Draughtsman).	Analyzing institutional representation; differentiating constitutional roles; evaluating the interplay between party ideology and national consensus.
Objectives Resolution	Jawaharlal Nehru's speech (13 Dec 1946); "Independent Sovereign Republic"; rejection of blind Western imitation; synthesis of American, French, and Russian revolutionary ideals; Universal Adult Franchise (Article 326).	Deconstructing foundational political philosophy; evaluating universal democratic franchise innovations; analyzing sovereign statecraft doctrines.
Rights & Minorities Debates	Debate on separate electorates: B. Pocker Bahadur vs Patel, Pant, and Begum Aizaz Rasul; abolition of separate electorates; rights of Depressed Classes: J. Nagappa, K.J. Khanderkar, Ambedkar; Article 17 (untouchability abolition); reserved seats.	Tracing legislative debates on minority rights; analyzing moral vs political arguments against communal electorates; evaluating social justice measures.
Tribal Rights & Adibasi Identity	Jaipal Singh's speech on indigenous democracy; historical exploitation and land alienation of tribal communities; constitutional guarantees: Fifth and Sixth Schedules; protective reservations.	Evaluating subaltern indigenous representation; analyzing tribal self-governance concepts within the national constitutional framework.
Federalism: Centre vs States	Case for a strong Centre: Nehru, Ambedkar, Patel; trauma of Partition; three legislative lists (Union, State, Concurrent); K. Santhanam's warning against fiscal crippling of states; Article 356 (President's Rule).	Analyzing federal distribution of powers; evaluating arguments for central fiscal primacy vs provincial administrative viability.
The Language Controversy	National language debate; R.V. Dhulekar's aggressive advocacy for Hindi; Southern opposition: Shrimati G. Durgabai, Shankarrao Deo; the Munshi-Ayyangar Formula; Hindi as Official Language; 15-year English transition; adoption (26 Nov 1949).	Resolving linguistic pluralism dilemmas; analyzing constitutional compromise mechanisms; deconstructing Ambedkar's warnings on social democracy.

CUET HIGH-SCORING INSIGHT & KEY COGNITIVE TRAPS

Theme 12 requires precision regarding individual member speeches, constitutional roles, and compromise formulas:

1. **Key Roles and Constitutional Architects:**
   - **President of Constituent Assembly:** Dr. Rajendra Prasad.

- **Chairman of Drafting Committee:** Dr. B.R. Ambedkar ("Father of the Constitution").
- **Constitutional Advisor:** B.N. Rau (prepared preliminary comparative drafts).
- **Chief Draughtsman:** S.N. Mukherjee (translated complex ideas into precise legal language).

2. **The Debate on Separate Electorates:**
   - **B. Pocker Bahadur (Madras):** Passionately defended separate electorates for minorities.
   - **Sardar Patel:** Condemned separate electorates as "a poison that has entered the body politic of our country" and caused Partition.
   - **Govind Ballabh Pant:** Declared separate electorates suicidal for minorities, permanently isolating them from the national mainstream.
   - **Begum Aizaz Rasul:** Muslim League member who rejected separate electorates as harmful to Muslims.
3. **Tribal Voice: Jaipal Singh** (Oxford-educated tribal leader and hockey Olympian) proclaimed: **"You cannot teach democracy to the tribal people; you have to learn democracy from them."**
4. **Federalism & Santhanam's Warning: K. Santhanam** (Madras) warned that over-centralization would reduce provinces to "beggars", making them unable to function.
5. **The Language Compromise (**The Munshi-Ayyangar Formula**):**
   - Hindi in Devanagari script was declared the **Official Language of the Union** (NOT the "national language").
   - English was retained for official purposes for a transitional period of **15 years** (until 1965).

1. The Historical Crucible & Genesis of the Constituent Assembly

The Constitution of India was framed between **December 1946 and November 1949**, amidst the catastrophic trauma of Partition, communal massacres, and the integration of over 500 princely states:

The Tumultuous Context of Framing (1946–1947)

The Constituent Assembly held its inaugural sitting in New Delhi on **9 December 1946** in the Constitution Hall (now the Central Hall of Parliament):

- **The Cabinet Mission Blueprint:** The Assembly was constituted according to the framework devised by the British **Cabinet Mission** of 1946. Its members were **indirectly elected** by the provincial legislative assemblies that had been elected in 1946 under a restricted franchise.
- **Membership Dynamics:** The original Assembly had 389 members. Following the partition of India on 15 August 1947, the membership was reduced to **299 members** (representing both British Indian provinces and acceding princely states).
- **Party Composition:** Although the Indian National Congress occupied **82 percent** of the Assembly seats, it was far from a monolithic party. The Congress encompassed a diverse spectrum of political ideologies: radical Marxists, socialists (like K.T. Shah), right-wing Hindu traditionalists, secular liberals, and Gandhian village-autonomy advocates.
- **Interim Leadership:** At the inaugural session on 9 December 1946, **Dr. Sachchidananda Sinha** presided as temporary interim chairman. Two days later, on **11 December 1946**, **Dr. Rajendra Prasad** was unanimously elected permanent President of the Assembly.

The Congress Triumvirate and Drafting Leadership

The colossal task of framing was guided by a core group of statesmen and legal luminaries:

- **The Congress Triumvirate:**
  - **Jawaharlal Nehru:** Moved the crucial Objectives Resolution, headed the States Committee and Union Powers Committee, and articulated the democratic, socialist, and secular vision of the new nation.
  - **Sardar Vallabhbhai Patel:** Managed the integration of princely states, negotiated behind-the-scenes compromises, and headed the Advisory Committee on Fundamental Rights, Minorities, and Tribal Areas.
  - **Dr. Rajendra Prasad:** As President, he impartially steered heated debates, ensuring that all regional and minority voices were given thorough hearings.
- **The Legal Architects:**
  - **Dr. B.R. Ambedkar:** Appointed Chairman of the seven-member **Drafting Committee**. Ambedkar brought towering intellectual mastery of comparative constitutional law and a passionate commitment to social justice and the eradication of caste tyranny.
  - **K.M. Munshi and Alladi Krishnaswami Ayyar:** Veteran lawyers who played instrumental roles in drafting clauses on fundamental rights and the judiciary.
  - **B.N. Rau:** The **Constitutional Advisor to the Government of India**, who traveled across Britain, the United States, Canada, and Ireland to prepare extensive comparative background papers and the initial rough draft of the Constitution.
  - **S.N. Mukherjee:** The brilliant **Chief Draughtsman**, whose extraordinary ability to translate intricate philosophical ideals into unambiguous statutory legal prose was publicly praised by Ambedkar.

2. The Objectives Resolution & Democratic Foundations

On **13 December 1946**, Jawaharlal Nehru introduced the historic **Objectives Resolution**, defining the moral and ideological foundations of the Indian Republic:

Nehru's Vision: The Synthesis of Global Revolutions

In a momentous address, Nehru delineated the historical contours of India's constitutional project:

- **Independent Sovereign Republic:** The resolution declared India's commitment to becoming an "Independent Sovereign Republic", guaranteeing justice (social, economic, and political), equality of status and opportunity, and fundamental freedoms of expression, belief, faith, and worship.
- **Rejection of Blind Imitation:** Nehru explicitly warned against slavishly copying Western constitutional structures: **"We are not going to copy... we are not going to reproduce what is happening elsewhere. The Constitution will have to fit the genius of the Indian people."**
- **Synthesis of Revolutionary Ideals:** Nehru invoked the great historic struggles for human liberty: the **American Revolution** and its Declaration of Independence, the **French Revolution** and its Declaration of the Rights of Man, and the **Russian Revolution** (1917) and its promise of economic liberation. India's task was to fuse political democracy with social and economic justice.
- **Unanimous Adoption:** After profound deliberations, the Objectives Resolution was unanimously adopted by the Assembly on **22 January 1947**, and its essential principles were later distilled into the majestic **Preamble** of the Indian Constitution.

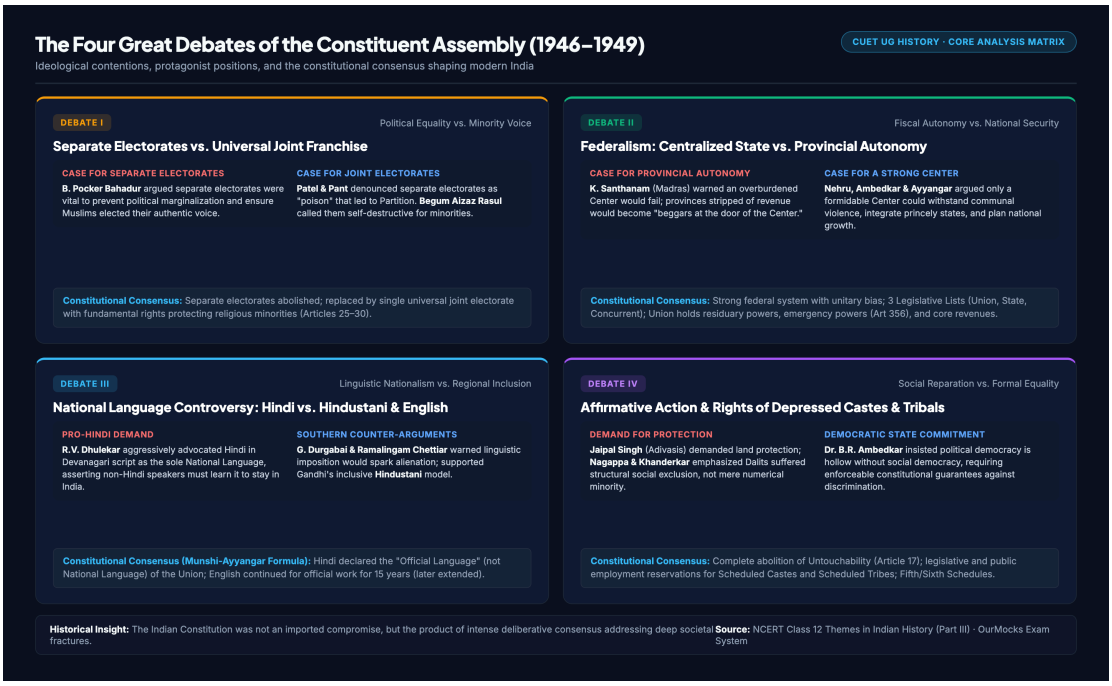


Figure 1: Figure 1 — Multi-Dimensional Debates Matrix of the Constituent Assembly: Ideological contestations over central authority, minority protections, depressed caste emancipation, and the national language.

Universal Adult Franchise: The Bold Leap of Faith

One of the most radical, revolutionary decisions taken by the framers was the immediate adoption of **Universal Adult Franchise** (enshrined in Article 326):

- **Rejection of Colonial Restrictions:** Under British colonial rule (the Government of India Acts of 1919 and 1935), voting was restricted to a tiny privileged minority (only 10% to 15% of the adult population) based on stringent property, tax, and educational qualifications.
- **Democratic Faith:** The Constituent Assembly granted every adult Indian citizen—regardless of gender, religion, caste, wealth, or educational status—the right to vote. While contemporary Western observers predicted that granting universal suffrage to an impoverished, overwhelmingly illiterate populace (over 85% illiteracy in 1947) would result in chaos, the framers displayed unshakeable faith in the democratic wisdom of ordinary Indian citizens.

3. Key Debates: Rights, Minorities & Social Equity

The framing of fundamental rights witnessed intense debates regarding how to reconcile individual citizenship with collective minority protections:

The Debate on Separate Electorates

The most contentious communal debate centered on whether to retain separate electorates for religious minorities:

- **B. Pocker Bahadur's Defense: B. Pocker Bahadur**, a Muslim League member from Madras, pleaded passionately on 27 August 1947 that separate electorates were indispensable: minorities needed authentic representatives chosen exclusively by themselves to articulate their needs without being swamped by the majority.
- **Patel's Fiery Rebuttal: Sardar Vallabhbhai Patel** fiercely condemned separate electorates as an insidious imperial trap: **"Separate electorates was a poison that has entered into the body politic of our country... It has divided the nation, brought about bloodshed and Partition. Do you desire to perpetuate this poison in independent India?"**

- **Pant's Warning on Isolation: Govind Ballabh Pant** warned that separate electorates would isolate minorities into permanently marginalized ghettos, destroying national integration: **"If you separate them from the rest of the nation, they will always remain a weak, isolated minority, dependent on the patronage of the majority."**
- **Begum Aizaz Rasul:** Significantly, progressive Muslim members, notably **Begum Aizaz Rasul**, rejected separate electorates as suicidal for minorities, urging Muslims to integrate fully into the national democratic mainstream.
- **Outcome:** Separate electorates were permanently abolished, replaced by a single common electoral roll for all citizens.

The Rights of Depressed Castes & Untouchability

The Assembly addressed centuries of caste oppression with radical constitutional guarantees:

- **Voices of Depressed Caste Members:**
  - **J. Nagappa (Madras):** Pointed out that the Depressed Castes constituted nearly one-fourth of the total population, yet had been systematically denied access to land, education, and political power: **"We have been groaned under the iron heel of the upper castes for centuries. We are not a minority; we are the original sons of the soil."**
  - **K.J. Khanderkar (Central Provinces):** Asserted that untouchability had reduced millions to virtual slavery, and demanded legislative representation proportional to their population.
- **Abolition of Untouchability (Article 17):** The Assembly enacted Article 17, declaring "Untouchability" to be abolished and its practice in any form forbidden by law. The Constitution guaranteed non-discriminatory access to all public wells, tanks, roads, and temples (Article 15).
- **Legislative and Service Reservations:** Moving beyond abstract legal equality, the Assembly introduced affirmative action: reserving seats in Parliament and State Legislatures, and reserving quotas in public employment and educational institutions for Scheduled Castes and Scheduled Tribes.

4. Tribal Rights & Adibasi Identity: The Voice of Jaipal Singh

The debate on the rights of indigenous tribal populations (**Adibasis**) brought one of the most eloquent, stirring interventions in the Assembly's history:

Jaipal Singh's Historic Speech (December 1946)

Jaipal Singh, an Oxford-educated tribal leader from Chota Nagpur and captain of the gold-medal-winning 1928 Indian Olympic hockey team, rose to welcome the Objectives Resolution:

- **Democracy as an Indigenous Heritage:** Jaipal Singh boldly challenged the paternalistic assumption that modern democracy was a gift from European colonizers:
  - **"As an Adibasi, I am not expected to understand the legal intricacies of the Resolution. But my common sense tells me that every one of us should march in that road to freedom and fight together."**
  - **"Sir, if there is any group of Indian people that has been shabbily treated, it is my people. They have been disgracefully treated, neglected for the last 6,000 years... The history of the Indus Valley civilisation itself shows that the original inhabitants of India were pushed back into the forests."**
  - **"You cannot teach democracy to the tribal people; you have to learn democracy from them. They are the most democratic people on earth."**

Constitutional Protections for Adivasis

Jaipal Singh demanded not special charity, but equal protection, physical security, and protection against land alienation by non-tribal exploiters:

- **Fifth and Sixth Schedules:** The Constitution established autonomous tribal district councils and special administrative mechanisms under the **Fifth and Sixth Schedules** to protect tribal lands, customs, and forest rights from outside encroachment.

5. Federal Architecture: Central Power vs. Provincial Autonomy

The devastating experience of Partition exerted a profound influence on the federal architecture of the new Republic:

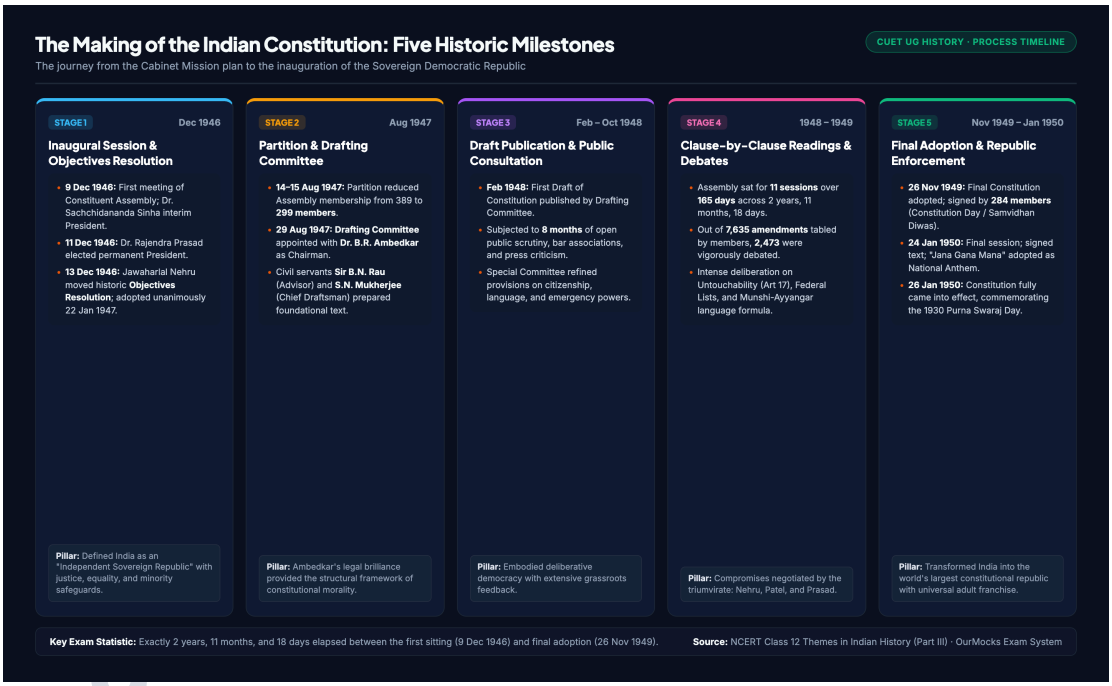


Figure 2: Figure 2 — Chronological Trajectory of Constitutional Framing: Genesis from the Cabinet Mission, committee stages, fiery debates, and final adoption (1946–1950 CE).

The Impetus for a Strong Central Government

The horrors of communal rioting and Partition convinced leaders like Jawaharlal Nehru, Dr. Ambedkar, and Sardar Patel that only an overwhelming, muscular Central Government could preserve the integrity of the nation:

- **Nehru's View:** In his letter to the President of the Assembly, Nehru wrote: **"Now that Partition is a settled fact, it is essential that the Centre should be strong, with ultimate authority to maintain peace, coordinate economic planning, and represent India effectively on the international stage."**
- **Ambedkar's Design:** Ambedkar defended the unitary features of the Constitution, emphasizing that while India was a "Union of States", the federation was not the result of an agreement among sovereign states, and no state had the right to secede from the Union.

The Critique of Over-Centralization: K. Santhanam's Warning

Several prominent members vehemently protested against the concentration of excessive power in New Delhi:

- **K. Santhanam (Madras):** Santhanam delivered a penetrating critique of fiscal centralization:

- **"Overburdening the Centre with responsibilities that can be handled better by the provinces will lead to administrative paralysis at the Centre and complete impotence in the provinces."**
- He warned that because all lucrative, elastic sources of revenue (income tax, customs duties, excise) were monopolized by the Centre, the states would be reduced to **"beggars knocking at the door of the Centre for grants-in-aid"**.

- **A. Ramaswamy Mudaliar and Shankarrao Deo:** Echoed these fears, arguing that provincial autonomy was essential for preserving cultural diversity and preventing authoritarian despotism.

The Federal Structure Adopted

The Assembly ultimately crafted a quasi-federal system with an unmistakable unitary bias:

- **Three Legislative Lists:**
  - **Union List (97 subjects):** Defense, foreign affairs, atomic energy, banking, and communications, placed under exclusive central control.
  - **State List (66 subjects):** Police, public order, agriculture, public health, and local government.
  - **Concurrent List (47 subjects):** Criminal law, civil procedure, education, and labor, where both Centre and States could legislate, with central law prevailing in cases of conflict.
- **Residuary Powers:** Unlike the United States Constitution (where residuary powers belong to the states), residuary legislative powers were vested exclusively in the Union Parliament (Article 248).
- **Emergency Provisions:** Under Article 356, the Centre was empowered to dismiss elected state governments and impose **President's Rule** on grounds of the breakdown of constitutional machinery.

6. The Language Controversy & The Munshi-Ayyangar Formula

No issue aroused greater emotional fury, linguistic chauvinism, and divisive acrimony in the Constituent Assembly than the question of the National Language:

The Clash of Linguistic Visions

- **R.V. Dhulekar's Aggressive Stance: R.V. Dhulekar**, a fiery Congressman from the United Provinces, ignited explosive confrontations by demanding that Hindi in the Devanagari script be recognized immediately as the sole National Language:
  - In December 1946, he shocked non-Hindi members by declaring: **"People who are present in this House to fashion a constitution for India and do not know Hindustani are not worthy to be members of this Assembly. The sooner they leave, the better!"**
  - Dhulekar insisted that independent India could not have an alien European language (English) as its national symbol.
- **Southern Backlash:** Members from non-Hindi-speaking provinces reacted with fierce indignation:
  - **Shrimati G. Durgabai (Madras):** Pointed out that aggressive Hindi chauvinism had alienated the people of the South: **"Sir, this campaign against English and in favor of Hindi is being carried on with such aggression that it has created deep alarm and resentment in South India. Forcing Hindi upon us will feel like the imposition of a new tyranny."**

- **Shankarrao Deo (Maharashtra):** Warned that if Hindi enthusiasts insisted on total surrender, they would shatter national unity: **"If you want my cooperation, you must respect my language and culture."**
- **T.A. Ramalingam Chettiar (Madras):** Warned that linguistic imperialism would tear the fledgling nation apart.

The Munshi-Ayyangar Compromise Formula

To resolve the perilous deadlock, drafting leaders **K.M. Munshi** and **N. Gopalaswami Ayyangar** formulated a historic compromise:

- **Official Language, Not National Language:** Hindi in the Devanagari script was designated as the **Official Language of the Union** (Article 343), deliberately avoiding the inflammatory term "National Language".
- **15-Year Transitional Period for English:** English would continue to be used for all official purposes of the Union, parliamentary proceedings, and Supreme Court judgments for a period of **15 years** (until 1965).
- **Regional Languages Protected:** Each state legislature was empowered to adopt its own regional vernacular language for official provincial administration (Article 345).

7. Enactment, Ambedkar's Warning & Democratic Legacy

The monumental constitutional drafting exercise concluded after nearly three years of meticulous labor:

The Milestones of Adoption and Commencement

- **26 November 1949:** The Constituent Assembly formally adopted and enacted the Constitution. Out of 299 members, **284 members** were physically present to sign the historic calligraphy manuscript.
- **26 January 1950:** The Constitution came into full legal commencement. This historic date was specifically chosen to commemorate the twentieth anniversary of **26 January 1930**, when the Indian National Congress had first celebrated Purna Swaraj Day on the banks of the Ravi River.

Ambedkar's Final Warning: The Life of Contradictions

On **25 November 1949**, Dr. B.R. Ambedkar delivered his profound farewell address to the Constituent Assembly, issuing an immortal warning regarding the survival of Indian democracy:

- **The Contradiction: "On 26th January 1950, we are going to enter into a life of contradictions. In politics we will have equality, and in social and economic life we will have inequality. In politics we will be recognising the principle of one man one vote and one vote one value. In our social and economic life, we shall, by reason of our social and economic structure, continue to deny the principle of one man one value."**
- **The Imperative of Social Democracy: "How long shall we continue to live this life of contradictions? How long shall we continue to deny equality in our social and economic life? If we continue to deny it for long, we will do so only by putting our political democracy in peril. We must remove this contradiction at the earliest possible moment or else those who suffer from inequality will blow up the structure of political democracy which this Assembly has so laboriously built up."**

8. The Public Sphere and Participatory Constitutionalism

Far from drafting the Constitution in secluded, ivory-tower isolation, the deliberations of the Constituent Assembly were constantly influenced by an engaged, vibrant public sphere:

Press Coverage and Vernacular Public Debates

The proceedings of the Assembly were held in public view, shaping and shaped by public opinion:

- **Daily Newspaper Reports:** Major national dailies (including **The Hindu**, **The Statesman**, **Amrita Bazar Patrika**, and **The Indian Express**) published detailed stenographic transcripts and analytical commentaries of the daily debates.
- **Public Petitions and Vernacular Memoranda:** Thousands of petitions flooded the Assembly secretariat from across the nation:
  - **Women's Organizations:** Groups such as the All India Women's Conference, led by **Hansa Mehta**, presented the National Flag to the Assembly on 14 August 1947 and demanded absolute constitutional equality for women in franchise, inheritance, and personal marriage laws.
  - **Trade Unions and Peasant Leagues:** Submitted memoranda demanding constitutional guarantees for the right to work, minimum living wages, and the unconditional abolition of landlordism (**zamindari**).
  - **Linguistic Associations:** Demanded the immediate reorganization of provinces along linguistic boundaries (including the demand for a separate Telugu-speaking Andhra province).

9. The Village Panchayat Controversy: Gandhi vs. Ambedkar

One of the most profound philosophical clashes within the Assembly pitted Gandhian visionaries against modernist constitutional lawyers regarding the fundamental unit of Indian governance:

The Gandhian Ideal of Panchayati Raj

Orthodox Gandhian members (such as **K. Santhanam**, **Shibban Lal Saksena**, and **Satyanarayan Sinha**) argued that the Constitution should be structured from the bottom up:

- **Decentralized Republics:** They advocated building the entire republic upon self-sufficient village panchayats, arguing that ancient India had thrived through autonomous village communities and that true grassroots democracy could only function at the village level.
- **Critique of the Draft:** They protested bitterly that the initial draft of the Constitution completely omitted any mention of village panchayats, constructing a top-heavy, centralized Anglo-Saxon parliamentary apparatus instead.

Ambedkar's Famous Rebuttal

Dr. B.R. Ambedkar mounted a fearless, controversial defense of the individual citizen over the village community:

- **The Reality of the Indian Village:** In his celebrated speech of 4 November 1948, Ambedkar dismantled romantic myths about Indian villages:
  - **"What is the village but a sink of localism, a den of ignorance, narrow-mindedness and communalism? I am glad that the Draft Constitution has discarded the village and adopted the individual as its unit."**
- **Protection of the Oppressed:** Ambedkar argued that for Dalits and lower castes, the traditional village was not an idyllic republic, but a site of caste terror, economic boycott, and

physical segregation. Only a strong, centralized modern state could dismantle feudal oppression and guarantee fundamental rights to vulnerable individuals.

- **The Compromise (Article 40):** The Assembly resolved the dilemma by incorporating the promotion of village panchayats not as an enforceable fundamental right, but as a Directive Principle of State Policy in **Article 40**.

10. The Global Mosaic: Synthesizing World Constitutional Traditions

The framers did not create the Constitution in an intellectual vacuum, but drew upon the finest democratic traditions of world constitutional history:

The Structural Baseline: Government of India Act 1935

Over two-thirds of the Constitution's administrative provisions were adapted from the **Government of India Act 1935**:

- **Federal Administrative Framework:** The federal scheme, the office of the Governor, the structure of the federal judiciary, the Public Service Commissions, and the emergency provisions were drawn directly from the 1935 Act, ensuring seamless administrative continuity upon independence.

Global Borrowings & Comparative Jurisprudence

- **United Kingdom:** The parliamentary system of government, the office of Prime Minister and Cabinet collective responsibility, the bicameral legislature, legislative procedure, Rule of Law, single citizenship, and prerogative writs.
- **United States:** The Fundamental Rights (inspired by the American Bill of Rights), Judicial Review, the independence of the judiciary, the impeachment of the President, and the removal of Supreme Court and High Court judges.
- **Ireland:** The **Directive Principles of State Policy (Part IV)**, the method of election of the President, and the nomination of distinguished members to the Council of States (Rajya Sabha).
- **Canada:** A federal structure with an overwhelming unitary bias (a strong Centre), the vesting of residuary legislative powers in the Union, and the advisory jurisdiction of the Supreme Court.
- **Australia:** The **Concurrent Legislative List**, freedom of interstate commerce and trade, and the provision for a joint sitting of both Houses of Parliament.
- **South Africa:** The procedure for constitutional amendment (Article 368) and the election of members of the Rajya Sabha.

Chapter Synthesis & Cognitive Mindmap

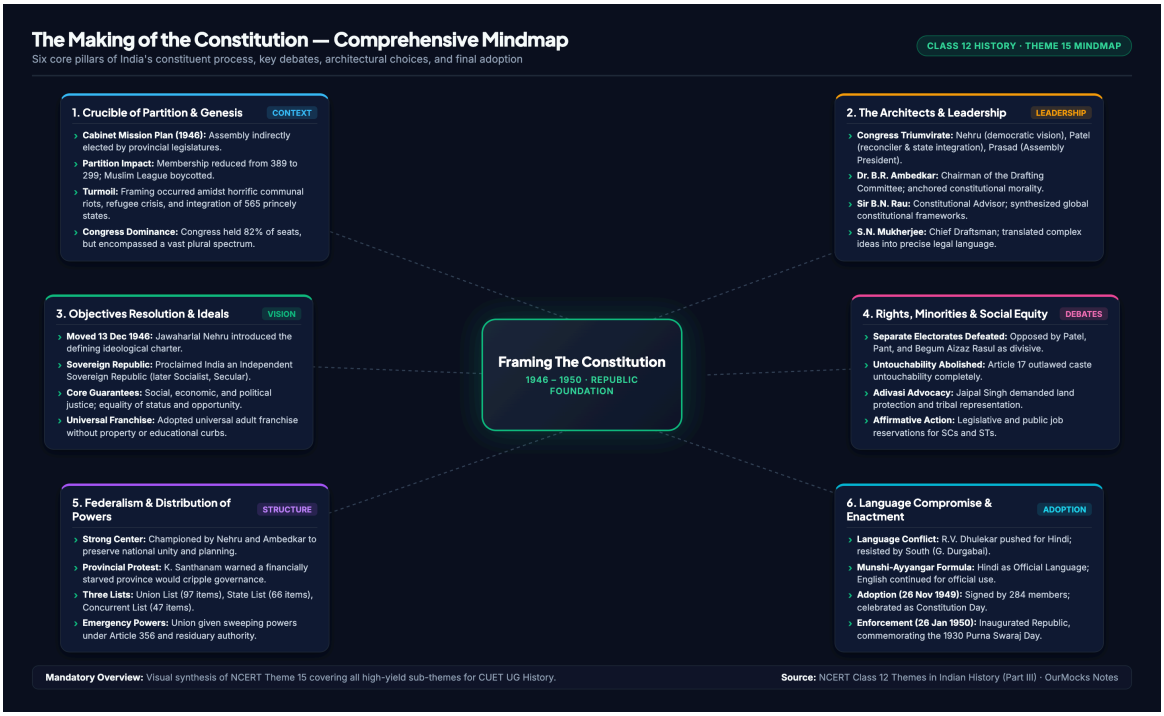


Figure 3: Figure 3 — The Making of the Constitution Summary Mindmap: Complete synthesis of the Cabinet Mission origins, Objectives Resolution, debates on minority electorates, tribal rights, federalism, language compromise, and Ambedkar's legacy.

HIGH-YIELD MEMORY HOOKS & HISTORIOGRAPHICAL POINTERS

- **Objectives Resolution (13 Dec 1946):** Moved by Jawaharlal Nehru; adopted unanimously on 22 January 1947; formed the conceptual basis of the Preamble.
- **Abolition of Separate Electorates:** Patel called it "a poison in the body politic"; Pant warned against minority isolation; Begum Aizaz Rasul supported abolition.
- **Tribal Democracy Champion:** Jaipal Singh proclaimed: "You cannot teach democracy to the tribal people; you have to learn democracy from them."
- **Santhanam's Federal Warning:** K. Santhanam warned that fiscal centralization would reduce states to "beggars" knocking on the Centre's door.
- **The Language Compromise:** The Munshi-Ayyangar Formula made Hindi the **Official Language** (not National Language) and retained English for 15 years.
- **Adoption vs Commencement Dates:** Adopted on **26 November 1949**; commenced on **26 January 1950** (to honor 1930 Purna Swaraj Day).
- **Ambedkar's Farewell Address (25 Nov 1949):** Warned against entering a "life of contradictions"—political equality alongside social-economic inequality.

MASTER STRATEGY CHEATSHEET — THE MAKING OF THE CONSTITUTION

▸**Assembly Composition:** Formed under 1946 Cabinet Mission Plan; indirect elections; 300 members post-Partition; 82% Congress; Dr. Rajendra Prasad (President); Dr. B.R. Ambedkar (Drafting Committee Chair); B.N. Rau (Advisor); S.N. Mukherjee (Chief Draughtsman). ▸**Objectives Resolution (1946):** Defined India as an "Independent Sovereign Republic"; synthesized ideals of American, French, and Russian revolutions; enacted Universal Adult Franchise (Article 326). ▸**Debates on Rights & Castes:** Separate electorates abolished post-Partition; Article 17 abolished untouchability; reservations introduced for SCs and STs; Fifth & Sixth Schedules for tribal self-governance. ▸**Federal Distribution:** Union List (97 subjects), State List (66), Concurrent List (47); residuary powers with the Union (Article 248); Article 356 (President's Rule); fiscal centralization critiqued by K. Santhanam. ▸**Language Settlement:** R.V. Dhulekar's militant advocacy for Hindi opposed by G. Durgabai and Shankarrao Deo; Munshi-Ayyangar formula adopted Hindi as Official Language and preserved English for 15 years. ▸**Commencement:** Signed by 284 members on 26 Nov 1949; enacted on 26 Jan 1950; Ambedkar warned of danger if social-economic inequality remained unaddressed.

THE SEVEN FATAL CUET TRAPS

1. **Trap 1 (Assembly Election Mechanism):** Assuming members were directly elected by universal suffrage. Members were **indirectly elected** by provincial legislative assemblies under restricted franchise.
2. **Trap 2 (Constitutional Roles Attribution):** Confusing Drafting Chair with Constitutional Advisor. **Dr. B.R. Ambedkar** was Drafting Committee Chair; **B.N. Rau** was Constitutional Advisor.
3. **Trap 3 (Separate Electorates Outcome):** Assuming separate electorates were retained for Scheduled Castes. Separate electorates were **completely abolished**; SCs/STs received **reserved seats** in joint electorates.
4. **Trap 4 (Hindi as National Language):** Believing Hindi was designated the "National Language". The Constitution designated Hindi as the **Official Language of the Union**, NOT the National Language!
5. **Trap 5 (English Retention Period):** The Munshi-Ayyangar formula retained English for **15 years** (until 1965), NOT permanently or for 5 years.
6. **Trap 6 (Adoption vs Commencement Date):** Confusing 26 November 1949 (Constitution Day, Adoption) with 26 January 1950 (Republic Day, Commencement).
7. **Trap 7 (Residuary Powers Jurisdiction):** Assuming residuary powers belong to the States as in the US. In India, residuary powers belong exclusively to the **Union Parliament** (Article 248).

Exam-Style Practice Questions & Detailed Solutions

Part 1: Assembly Origins, Drafting Leadership & Objectives Resolution (Q1 to Q5)

Q1. On which historic date did the Constituent Assembly of India convene for its very first inaugural sitting in New Delhi?

(A) 15 August 1947
(B) 9 December 1946
(C) 11 December 1946
(D) 13 December 1946

Sol. Q1. Inaugural Sitting of the Assembly:

- The Constituent Assembly met for the first time on **9 December 1946** in Constitution Hall, New Delhi.
- Dr. Sachchidananda Sinha served as temporary interim Chairman before Dr. Rajendra Prasad was elected President on 11 December.

Therefore, Option B is the correct answer. **Answer: (B)**

Q2. Who moved the historic 'Objectives Resolution' in the Constituent Assembly on 13 December 1946, outlining the ideological foundations of the Republic?

(A) Dr. B.R. Ambedkar
(B) Sardar Vallabhbhai Patel
(C) Jawaharlal Nehru
(D) Dr. Rajendra Prasad

Sol. Q2. Moving of the Objectives Resolution:

- **Jawaharlal Nehru** moved the historic **Objectives Resolution** on **13 December 1946**.
- It defined India as an "Independent Sovereign Republic", synthesized global revolutionary ideals, and was adopted on 22 January 1947.

Therefore, Option C is the correct answer. **Answer: (C)**

Q3. Under the constitutional framework formulated by the British Cabinet Mission Plan of 1946, members of the Constituent Assembly were:

(A) Indirectly elected by the members of the Provincial Legislative Assemblies
(B) Directly elected by all Indian citizens on the basis of universal adult franchise
(C) Nominated exclusively by the Governor-General in Council
(D) Appointed directly by the British Parliament in London

Sol. Q3. Election Mode of the Assembly:

- Members of the Constituent Assembly were **indirectly elected** by the newly elected Provincial Legislative Assemblies.
- Seats were allocated to provinces and princely states in proportion to their respective populations (roughly 1 to 1 million).

Therefore, Option A is the correct answer. **Answer: (A)**

Q4. Who served as the Chairman of the Drafting Committee of the Constituent Assembly, playing the preeminent role in structuring the Indian Constitution?

(A) Jawaharlal Nehru
(B) Sardar Vallabhbhai Patel
(C) Dr. Rajendra Prasad
(D) Dr. B.R. Ambedkar

Sol. Q4. Chairman of the Drafting Committee:

- **Dr. B.R. Ambedkar** served as Chairman of the **Drafting Committee**.
- Famed for his unmatched legal learning and commitment to social emancipation, he is celebrated as the "Father of the Indian Constitution".

Therefore, Option D is the correct answer. **Answer: (D)**

Q5. Which eminent jurist served as the Constitutional Advisor to the Government of India, preparing comprehensive background reports and initial comparative drafts?

(A) B.N. Rau
(B) S.N. Mukherjee
(C) Alladi Krishnaswami Ayyar
(D) K.M. Munshi

Sol. Q5. Constitutional Advisor B.N. Rau:

- **Sir B.N. Rau** served as the **Constitutional Advisor**.
- He surveyed international democratic constitutions across the world, preparing comparative papers and the initial basic draft of the Constitution.

Therefore, Option A is the correct answer. **Answer: (A)**

Part 2: Separate Electorates, Tribal Democracy & Federalism (Q6 to Q10)

Q6. Which Muslim League member from Madras made a passionate defense in the Constituent Assembly on 27 August 1947 urging the retention of separate electorates for minorities?

(A) B. Pocker Bahadur
(B) Begum Aizaz Rasul
(C) Chaudhry Khaliquzzaman
(D) Maulana Abul Kalam Azad

Sol. Q6. B. Pocker Bahadur on Separate Electorates:

- **B. Pocker Bahadur** (Madras) passionately argued that minorities needed separate electorates to secure authentic political representation.
- His plea was rejected by Patel, Pant, and Begum Aizaz Rasul, and separate electorates were permanently abolished.

Therefore, Option A is the correct answer. **Answer: (A)**

Q7. Who delivered the memorable speech championing indigenous tribal rights, famously proclaiming: 'You cannot teach democracy to the tribal people; you have to learn democracy from them'?

(A) Birsa Munda
(B) Jaipal Singh
(C) J. Nagappa
(D) K.J. Khanderkar

Sol. Q7. Jaipal Singh's Defense of Tribal Democracy:

- **Jaipal Singh**, charismatic tribal leader and Olympic champion, defended Adibasi heritage in December 1946.
- He declared that tribal people were the most democratic society on earth and demanded protection against non-tribal exploitation.

Therefore, Option B is the correct answer. **Answer: (B)**

Q8. Which prominent member from Madras warned against excessive fiscal centralism, arguing that depriving provinces of elastic revenue would reduce them to 'beggars knocking at the door of the Centre'?

(A) C. Rajagopalachari
(B) Alladi Krishnaswami Ayyar
(C) K. Santhanam
(D) T.T. Krishnamachari

Sol. Q8. K. Santhanam's Warning on Fiscal Federalism:

- **K. Santhanam** (Madras) warned that over-centralizing revenue collection would cripple provincial administration.
- He argued that without independent finances, states would be reduced to helpless "beggars" dependent on central doles.

Therefore, Option C is the correct answer. **Answer: (C)**

Q9. Which member from the United Provinces aggressively demanded that Hindi in the Devanagari script be adopted immediately as the sole National Language, sparking intense resistance from the South?

(A) Govind Ballabh Pant
(B) Purushottam Das Tandon
(C) Acharya Kripalani
(D) R.V. Dhulekar

Sol. Q9. R.V. Dhulekar on the Hindi Question:

- **R.V. Dhulekar** (UP) aggressively insisted on Hindi as the sole national language, asserting in December 1946 that those who did not know Hindustani were unfit to frame India's Constitution.

Therefore, Option D is the correct answer. **Answer: (D)**

Q10. The historic compromise formula that resolved the explosive language debate by declaring Hindi the Official Language and retaining English for fifteen years was crafted by:

(A) Jawaharlal Nehru and Sardar Patel
(B) K.M. Munshi and N. Gopalaswami Ayyangar
(C) Dr. B.R. Ambedkar and B.N. Rau
(D) R.V. Dhulekar and G. Durgabai

Sol. Q10. The Munshi-Ayyangar Formula:

- **K.M. Munshi** and **N. Gopalaswami Ayyangar** formulated the compromise:
  - Hindi in Devanagari script became the **Official Language of the Union** (not "National Language").
  - English was retained for official purposes for a transitional period of **15 years** (until 1965).

Therefore, Option B is the correct answer. **Answer: (B)**

Part 3: Adoption, Enactment, Adult Franchise & Warnings (Q11 to Q15)

Q11. On which date did the Constituent Assembly of India formally adopt, enact, and give to themselves the Constitution of India?

(A) 15 August 1947 (B) 26 January 1950
(C) 26 November 1949 (D) 22 January 1947

Sol. Q11. Adoption Date of the Constitution:

- The Constitution was formally adopted and enacted on **26 November 1949** (now celebrated as Constitution Day).
- It came into full legal commencement on **26 January 1950** to commemorate the 1930 Purna Swaraj Day.

Therefore, Option C is the correct answer. **Answer: (C)**

Q12. Who served as the brilliant Chief Draughtsman of the Constituent Assembly, whose unmatched talent for phrasing intricate proposals into precise legal language was praised by Ambedkar?

(A) S.N. Mukherjee (B) B.N. Rau
(C) Sachchidananda Sinha (D) H.V.R. Iengar

Sol. Q12. S.N. Mukherjee as Chief Draughtsman:

- **S.N. Mukherjee** served as the **Chief Draughtsman**.
- In his final address, Dr. Ambedkar showered high praise on Mukherjee for his exceptional ability to draft complex political compromises into clear statutory language.

Therefore, Option A is the correct answer. **Answer: (A)**

Q13. In his historic farewell address to the Constituent Assembly on 25 November 1949, Dr. B.R. Ambedkar warned that political democracy would be imperiled unless accompanied by:

(A) The mandatory conscription of all citizens into the armed forces (B) The immediate nationalization of all private agricultural lands
(C) A total prohibition on the formation of regional political parties (D) Social and economic equality (fraternity) in the daily lives of citizens

Sol. Q13. Ambedkar's Farewell Warning:

- On **25 November 1949**, Dr. Ambedkar warned that India was entering a **"life of contradictions"**—political equality alongside social and economic inequality.
- He warned that unless social and economic democracy was achieved, those suffering inequality would blow up political democracy.

Therefore, Option D is the correct answer. **Answer: (D)**

Q14. Under Article 326 of the Constitution of India, Universal Adult Franchise was adopted granting voting rights to all adult citizens without which colonial disqualifications?

(A) Gender qualifications only (B) Property, taxation, educational, and gender qualifications
(C) Age and mental soundness requirements (D) Citizenship and residence requirements

Sol. Q14. Universal Adult Franchise (Article 326):

- Article 326 established **Universal Adult Franchise**, completely abolishing British colonial restrictions based on property ownership, tax payments, educational degrees, or gender.

Therefore, Option B is the correct answer. **Answer: (B)**

Q15. Who served as the permanent President of the Constituent Assembly, steering its intense debates with patience, dignity, and consensus from December 1946 to January 1950?

(A) Sardar Vallabhbhai Patel (B) Jawaharlal Nehru
(C) Dr. Rajendra Prasad (D) Dr. B.R. Ambedkar

Sol. Q15. President of the Constituent Assembly:

- **Dr. Rajendra Prasad** was elected permanent President of the Constituent Assembly on 11 December 1946.
- He guided all proceedings and was later elected the first President of the Republic of India.

Therefore, Option C is the correct answer. **Answer: (C)**